

**PLACER COUNTY SUPERIOR COURT
FRIDAY, TAHOE DIVISION LAW AND MOTION
DEPARTMENT 14
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR MAY 29, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, MAY 29, 2026 at 8:30 A.M.**, Tahoe Division law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, MAY 28, 2026**. Notice of request for argument to the court must be made by calling (530) 584-3463. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 A.M. IN DEPARTMENT 14** located at the Tahoe City Courthouse, 2501 No. Lake Boulevard, Tahoe City, California 96145.

1. S-CV-0050336 BAL, GURMAN v. AMERIO, ASHLEY

Defendant's Motion for Attorney's Fees After Appeal

Preliminary Matters

As an initial matter, the court notes plaintiff filed a non-stipulation to a commissioner on both April 30, 2026 and May 20, 2026. Pursuant to Placer Court Local Rule 20.2.B, the parties must file written notice at least five days prior to the hearing date or the failure to file will be deemed a stipulation to a commissioner as a temporary judge for all purposes other than trial. This court heard the underlying anti-SLAPP motion filed on January 2, 2024 along with hearing subsequent attorney's fees motions. The non-stipulation is untimely and the court will proceed to hear the pending motion.

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Ruling on Request for Judicial Notice

Defendant's request for judicial notice is granted as to Exhibits A, B, C, and D. (Evidence Code section 452.)

Ruling on Motion

The motion is granted.

Defendant seeks to recover \$49,342.50 in attorneys' fees along with \$814.68 in costs incurred after prevailing on appeal. The prevailing party after bringing a successful anti-SLAPP motion is entitled to reasonable attorney's fees and costs, which includes those incurred on appeal. (*Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1426.) The court has carefully considered the number of hours expended by counsel in relation to the appeal along with the hourly rates for comparable appellate work. The court finds that both the hourly rates and hours expended are reasonable. The court has also carefully considered the request for costs and determines the amount is reasonable as well.

Thusly, the motion is granted in its entirety. The court finds defendant to be the prevailing party on appeal entitled to attorneys' fees and costs. The court orders attorneys' fees on appeal in the amount of \$49,342.50 and costs on appeal in the amount \$814.68 for a total award of \$50,157.18.